

California Regional Water Quality Control Board
North Coast Region

Order No. R1-2006-0053
ID No. 1B05160RSON

WASTE DISCHARGE REQUIREMENTS

FOR

BOHEMIAN GROVE
WASTEWATER TREATMENT FACILITY

Sonoma County

The California Regional Water Quality Control Board, North Coast Region (hereinafter Regional Water Board), finds that:

1. The Bohemian Club (hereinafter Discharger) submitted a Report of Waste Discharge dated November 8, 2005 for the Bohemian Grove in Monte Rio. Supplemental application information was submitted on November 15, 2005, January 6, 2006, January 9, 2009, February 21, 2006, February 22, 2006, February 24, 2006, March 8, 2006, March 14, 2006, and July 17, 2006. The first annual fee of \$3,117 was received on May 3, 2006 to complete the report of waste discharge.
2. For the purposes of this Order, the term “wastewater treatment facility” (WWTF) shall mean the sewage collection and conveyance systems, the wastewater treatment system, wastewater pump stations, the irrigation tank, and the effluent disposal system.
3. The Bohemian Grove WWTF is owned and operated by the Discharger to provide wastewater collection, treatment and disposal for the Bohemian Grove. The Bohemian Grove is located adjacent to the Russian River within Sections 4, 5, 7, 8, 9, 10, 16, 17, and 18 T7N, R10W MDB&M, as shown in Attachment “A” to this Order, which is attached hereto and made part of this Order by reference.
4. The Bohemian Grove has been used as a retreat for the Bohemian Club since about 1915. The Bohemian Grove currently consists of 119 guest camps and support facilities that occupy approximately 300 acres of the Bohemian Grove’s 2,678 acres. The camps consist of shared-use structures, tent platforms, open decks, and are uphill of common use facilities such a dining entertainment and recreation buildings. The existing onsite systems, with the exception of the onsite system serving the office, the Grovekeeper’s residence, and the fire station, will be abandoned in place in accordance with Sonoma County requirements. The office system will be used only in the winter and will serve offices, shops, the commissary, registration, and the residences of the Grovekeeper and caretaker and infrequent and limited use of one or two camps. The new centralized WWTF will replace the existing individual onsite treatment and disposal systems currently serving the Bohemian Grove.
5. Wastewater flow to the WWTF will be generated primarily during special events held annually at the Bohemian Grove. The largest event is known as the “encampment” and lasts for 18 days in late July to early August and is expected to generate as much as 2.25 million gallons of wastewater over that period. A second event, “Spring Jinks,” occurs over four days in May, but is expected to

generate much lower flows. The remaining approved special events, the Spring Picnic and the Fall Picnic, are comparatively small and are not expected to have a significant impact on wastewater storage capacity and irrigation disposal rates. Additional events, beyond those authorized by the Use Permit, are prohibited without additional review and approval by the Sonoma County PRMD and the Regional Water Board.

6. This WWTF provides treatment and control of the discharge that incorporates: 1) Technology for appropriate treatment of municipal wastewater; 2) Appropriate spray disposal practices; 3) A Spill Response and Notification Plan; and 4) a certified operator to assure proper operation and maintenance.

Wastewater Treatment System

7. The WWTF consists of screening facilities, a pretreatment tank, and two aerobic treatment ponds. Pretreatment consists of the introduction of air to raw wastewater in a 240,000-gallon tank to initiate the biological treatment process. Effluent from the pretreatment tank is pumped to a 700,000-gallon aerated primary treatment pond. Overflow from the primary pond flows by gravity to a 1.5 million gallon aerated pond for additional treatment prior to discharge to the spray irrigation system. Flow measurements will be taken from a flow meter located at the high-pressure booster pump station and at the irrigation pump station.
8. The treatment ponds are lined with 60-mil industrial strength Hypalon® (chlorosulfanated polyethylene). Subdrains, toe drains, and heel drains are included in the design to prevent high groundwater from affecting proper function of the pond liner. The subdrains are to be piped to a sampling station where subdrain water can be tested to detect leaks in the storage pond liners. The storage ponds have staff gauges to facilitate the monitoring of the amount of water in storage.

Wastewater Disposal System

9. The effluent disposal system consists of a 30,000-gallon irrigation tank and spray disposal areas. Disinfected effluent is pumped from the irrigation tank to the sprayfields for disposal. The pump station is equipped with two 3-hp centrifugal pumps with pumping capacities of 50 gallon per minute (72,000 gpd). Effluent disinfection is achieved by dosing with sodium hypochlorite. Flow measurements will be taken for the flows being discharged to the sprayfields. The irrigation tank is equipped with a high water alarm that will alert the Grovekeeper in the event of impending tank overflow.
10. The total spray disposal area is approximately 4.8 acres in size and will be used to dispose of wastewater primarily from April through October. Spray disposal during other times of the year is allowed when conditions allow, provided the discharge does not violate other discharge specifications and prohibitions of this Order. Treated effluent is pumped to the spray fields by one of two 50-gallon per minute pumps. There are approximately 120 spray head risers within the spray fields. The distance between each riser varies from approximately 20 to 40+ feet. Spray heads are operated automatically by a programmable irrigation controller. Spray disposal is expected to occur every day during the irrigation season. Several of the spray heads are located adjacent to surface water drainage courses.

This Order requires minimum setback distances from spray irrigation areas to surface water drainage courses and ephemeral streams.

11. The evapotranspiration (ET) rate of the spray irrigation area is estimated to be approximately 7,000 gallons per acre per day, based on the estimated ET rate determined for the Russian River County Sanitation District spray irrigation discharge to forested land near to the Bohemian Grove. Site-specific ET rates of the proposed irrigation areas at the Bohemian Grove are unknown.

Sanitary Sewer Collection System

12. The wastewater collection system consists of approximately 2.3 miles of gravity and pressure piping to convey wastewater to the pretreatment tank and aerated ponds. Raw wastewater pressure lines are 4-inch and 6-inch diameter PVC. The pressure line from the pretreatment tank to the aerated pond is 6-inch diameter high density polyethylene (HDPE). Pressure lines conveying treated effluent to the irrigation system are 2-inch and 3-inch diameter HDPE.

Site Specific Conditions

13. The average annual precipitation for the Guerneville area is approximately 46.7 inches, based on data collected from the Guerneville rain gage (DWR # F90 3684 00) from 1925 to 2000. The maximum annual rainfall observed over this period was 94.5 inches. (Source: KRIS Russian River)
14. The average ET rate for the area is approximately 0.05 inches per day from November through March and 0.17 inches per day from April through October. (Source: California Irrigation Management Information System (CIMIS) Reference Evapotranspiration Map, 1999)
15. The facility lies within the Lower Russian River Hydrologic Unit Area No. 114.00 (Guerneville Hydrologic Subarea- 114.11), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
16. According to information presented in the ROWD, the soils and geology encountered underlying the treatment pond location consist “primarily of layered silts and clays with varying content of sand and locally occurring gravel, cobbles and boulders,” and underlain by decomposed bedrock identified as mica schist. The depth to bedrock ranges from approximately 2.5 to 7.0 feet below ground surface. Groundwater was not encountered at augured depths, typically 4-6 feet, during a geotechnical study conducted in 2005, although minor seepage was observed in test pits at depths ranging from 2.5 to 5 feet.
17. The project area is in a seismically active region. The closest known active faults are the San Andreas Fault Zone, located about 7 miles to the southwest of the project site, and the Rodgers Creek Fault Zone, located approximately 13 miles to the northeast. A geotechnical study included in the ROWD concluded that strong ground shaking can be expected to occur during the life of the WWTF, but the potential for fault rupture that could result in failure of the treatment and storage facilities is very low.
18. A biological survey found three special status plants within the areas proposed for pond construction. These plants are the thin-lobed Horkelia (*Horkelia tenuiloba*),

Crystal Springs Lessingia (*Lessingia arachnoidea*), and Bakers Manzanita (*Arctosaphylos bakeri* ssp. *Bakeri*). The Discharger, after consultation with the California Department of Fish and Game, has proposed and will implement mitigation measures to reduce the impact of its project on the special status plant populations at the proposed pond site. Additional information about this matter, including prescribed mitigation measures, can be found in the project description for Sonoma County Use Permit UPE04-0153.

Discharge Specific Water Quality Concerns

19. The primary spray irrigation area contains a number of surface water drainage courses and ephemeral watercourses. Direct discharges to ephemeral watercourses are prohibited under this Order. The Discharger has located irrigation spray head risers to establish minimum setbacks and adjusted spray patterns so as to avoid direct discharges of waste to surface water drainages and ephemeral watercourses. Should it become evident that the minimum setbacks are insufficient to ensure that direct discharges do not occur, the Discharger is required to modify its irrigation discharge to bring the discharge into compliance with this Order.
20. Site-specific ET rates in the spray disposal areas are not currently known. Spray irrigation at rates that exceed the actual ET rate may cause flow in surface water drainages and ephemeral watercourses. Should it become evident that the irrigation discharge is generating surface runoff, generating unseasonable flow in the ephemeral watercourses, or causing groundwater seepage to the extent that the seepage causes pollution or nuisance conditions, the Discharger is required to modify its irrigation discharge to bring the discharge into compliance with this Order.

Basin Plan, Beneficial Uses and Regulatory Considerations

21. The Water Quality Control Plan for the North Coast Region (Basin Plan) contains implementation plans and policies for protecting waters of the basin, and incorporates by reference plans and policies adopted by the State Board. Pursuant to Section 13263(a) of the California Water Code (CWC), waste discharge requirements must implement the Basin Plan.
22. Surface water drainage from the Bohemian Grove is to Kitchen Creek, an ephemeral stream that flows into the Russian River upstream of Monte Rio. The existing beneficial uses of the Lower Russian River Hydrologic Unit include:
 - a. municipal and domestic supply (MUN)
 - b. agricultural supply (AGR)
 - c. industrial process supply (IND)
 - d. groundwater recharge (GWR)
 - e. water contact recreation (REC-1)
 - f. non-contact water recreation (REC-2)
 - g. commercial and sport fishing (COMM)
 - h. warm freshwater habitat (WARM)
 - i. cold freshwater habitat (COLD)
 - j. wildlife habitat (WILD)
 - k. rare, threatened, or endangered species (RARE)
 - l. migration of aquatic organisms (MIGR)

- m. spawning, reproduction, and/or development (SPWN)
 - n. estuarine habitat (EST)
 - o. flood peak attenuation/ flood water storage (FLD)
 - p. wetland habitat (WET)
 - q. water quality enhancement (WQE)
 - r. subsistence fishing (FISH)
23. Beneficial uses of areal groundwaters include:
- a. domestic water supply (DOM)
 - b. agricultural water supply (AGR)
 - c. industrial water supply (IND)
24. The Basin Plan identifies numerical water quality objectives for waters designated as municipal supply. Waters designated for use as domestic or municipal supply shall not contain concentrations of chemical constituents in excess of the limits specified in Title 22, California Code of Regulations, Chapter 15, Division 4, Article 4, Section 64435 (Tables 2 and 3) and Section 64444.5 Table 5), and listed in Table 3-2 of the Basin Plan. The Basin Plan's incorporation of these provisions by reference is prospective, and includes future changes to the incorporated provisions as the changes take effect.
25. The Basin Plan contains narrative water quality objectives for chemical constituents, tastes and odors, and toxicity. The toxicity objective requires that groundwater be maintained free of toxic substances in concentrations that produce detrimental physiological responses in humans, plants or animals. The chemical constituent objective requires that groundwater shall not contain chemical constituents in concentrations that adversely affect beneficial uses. The tastes and odors objective requires that groundwater shall not contain tastes or odors producing substances in concentrations that cause nuisance or adversely affect beneficial uses.
26. As required by California Water Code Section 13263, these WDRs are crafted to implement the Basin Plan, and in so doing, the Regional Water Board has taken into consideration the beneficial uses to be protected, the water quality objectives reasonably required for that purpose, other (including previous) waste discharges, the need to prevent nuisance, and considerations of the provisions of California Water Code section 13241
27. A mitigated negative declaration was prepared and certified by the Sonoma County Planning Department on February 23, 2006, to satisfy the requirements of the California Environmental Quality Act (Pub. Resources Code Section 21000 et. seq.). The negative declaration evaluated the impacts of the discharge of treated wastewater to surface water and groundwater quality. Acting as a responsible agency, the Regional Water Board has considered the negative declaration as required pursuant to Title 14, California Code of Regulations, Section 15096.
28. State Water Resources Control Board (State Board) Resolution No. 68-16 (hereafter Resolution No. 68-16 or the "Antidegradation Policy") requires the Regional Board in regulating the discharge of waste to maintain high quality waters of the state until it is demonstrated that any change in quality will be consistent with maximum benefit to the people of the State, will not unreasonably

affect beneficial uses, and will not result in water quality less than that described in the Regional Board's policies (e.g., quality that exceeds water quality objectives). The permitted discharge is consistent with Resolution No. 68-16.

29. Section 303(d) of the federal Clean Water Act requires states to identify waterbodies that do not meet water quality standards and are not supporting their beneficial uses. Each state must submit an updated list, called the 303(d) List of Impaired Waterbodies, to the United States Environmental Protection Agency (USEPA) by April of each even numbered year. In addition to identifying the waterbodies that are not supporting beneficial uses, the List also identifies the pollutant or stressor causing impairment, and establishes a schedule for developing a control plan to address the impairment. The USEPA requires the Regional Water Board to develop total maximum daily loads (TMDLs) for each 303(d) listed pollutant and water body combination. A designated reach in the mainstem of the Lower Russian River (Guerneville HSA) is currently listed for pathogens, sediment, and temperature.
30. The Regional Water Board adopted Resolution No. R1-2004-0087 on November 29, 2004, which directs the Regional Water Board to control discharges of sediment waste to waterbodies that are documented as impaired by sediment under its authority pursuant to Section 13260 of the CWC (waste discharge requirements). This Order contains prohibitions and requirements to implement this Resolution.
31. The Regional Water Board has notified the discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
32. The Regional Water Board, in a public meeting, heard and considered all comments pertaining to the discharge.

THEREFORE, IT IS HEREBY ORDERED that the Discharger, in order to meet the provisions contained in Division 7 of the CWC and regulations adopted thereunder, shall comply with the following:

A. DISCHARGE PROHIBITIONS

1. The discharge of any waste not specifically regulated by this Order is prohibited.
2. Creation of a pollution, contamination, or nuisance, as defined by CWC Section 13050, is prohibited.
3. The discharge of waste to land that is not under the control of the discharger is prohibited, except as authorized under Section F of this Order.
4. The discharge of untreated waste from anywhere within the collection, treatment, or disposal facility is prohibited.
5. The discharge of waste to surface waters, including the Russian River or its tributaries is prohibited.

6. The discharge of waste to groundwater is prohibited.
7. The discharge of treated effluent to the spray irrigation area of more than 7,000 gallons per acre per day in any 24-hour period is prohibited.

B. DISCHARGE SPECIFICATIONS

1. Disposal of effluent shall be limited to periods where the discharge does not violate other discharge specifications and prohibitions of this Order, and shall be confined to permitted spray disposal areas.
2. No waste constituent shall be released or discharged, or placed where it will be released or discharged, in a concentration or in a mass that causes violation of the Basin Plan's water quality objectives for groundwaters.
3. Objectionable odor originating at the facility shall not be perceivable beyond the limits of the Grove property.
4. As a means of discerning compliance with Discharge Specification No. 3, the dissolved oxygen content in the upper zone (one foot) of the effluent storage reservoir shall not be less than 1.0 mg/l.
5. Public contact with wastewater shall be precluded or controlled through such means as fences and signs, or acceptable alternatives.
6. The Discharger shall operate all systems and equipment to maximize treatment of wastewater and optimize the quality of the discharge.
7. The WWTF shall have sufficient treatment, storage, and disposal capacity to accommodate allowable wastewater flow, design seasonal precipitation, and ancillary infiltration and inflow during the winter months. Design seasonal precipitation shall be based on total annual precipitation using a minimum 10-year return period, distributed monthly in accordance with historical rainfall patterns.
8. The freeboard in the effluent storage reservoir shall never be less than two feet as measured vertically from the water surface to the lowest point of overflow.
9. The effluent storage ponds and irrigation areas shall be managed to prevent the breeding of mosquitoes.

C. EFFLUENT LIMITATIONS

1. Representative samples of the wastewater discharged to the spray irrigation system shall not contain constituents in excess of the following limits:

<u>Constituent</u>	<u>Unit</u>	<u>Monthly Average^a</u>	<u>Daily Maximum^b</u>
BOD (20° C, 5-day)	mg/l	50	80
Suspended Solids	mg/l	50	80
Total Coliform Organisms	MPN/ 100 ml	23 ^c	240

2. A minimum total chlorine residual of 1.5 mg/L shall be maintained at the end of the disinfection process.

D. SPRAY DISPOSAL AREA SPECIFICATION

1. Public contact with wastewater shall be controlled through use of fences and cautionary signs, and/or other appropriate means.
2. Application of effluent shall comply with the following setback requirements:

<u>Setback Definition^d</u>	<u>Minimum Irrigation Setback (feet)</u>
Edge of spray disposal area to property boundary	50
Edge of spray disposal area to public/private road	15
Edge of spray disposal area to irrigation well	100
Edge of spray disposal area to domestic well	100
Edge of spray disposal area to ephemeral watercourse	30
Edge of spray disposal area to surface water drainage courses	10

3. Irrigation of effluent shall not be performed within 24 hours of a forecasted storm, during a storm, within 24 hours after any measurable precipitation event, or when the ground is saturated.
4. Spray irrigation of effluent is prohibited when wind velocities exceed 30 mph.

E. GROUNDWATER LIMITATIONS

1. The collection, storage, and use of wastewater or recycled water shall not cause or contribute to a statistically significant degradation of groundwater quality.
2. The collection, storage, and use of wastewater shall not cause groundwater to contain taste- or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses.

^a The arithmetic mean of all samples collected in a calendar month, calculated as the sum of all samples in a calendar month divided by the number of samples.

^b The maximum sample of all samples collected in a calendar day.

^c The median of all samples collected in a calendar month.

^d As defined by the wetted area produced during irrigation

F. GENERAL SOLIDS DISPOSAL SPECIFICATIONS

1. Sludge, as used in this document, means the solid, semisolid, and liquid residues removed during primary, secondary, or advanced wastewater treatment processes. Solid waste refers to grit and screenings generated during preliminary treatment. Residual sludge means sludge that will not be subject to further treatment at the WWTF. Biosolids refers to sludge that has been treated and tested and shown to be capable of being beneficially and legally used pursuant to federal and state regulations as a soil amendment for agriculture, silviculture, horticulture, and land reclamation activities.
2. Sludge and solid waste shall be removed from screens, sumps, ponds, and tanks as needed to ensure optimal plant operation.
3. Treatment and storage of sludge generated by the WWTF shall be confined to the WWTF property, and shall be conducted in a manner that precludes infiltration of waste constituents into soils at concentrations that will violate the Basin Plan's water quality objectives for groundwaters.
4. Any storage of residual sludge, solid waste, and biosolids at the WWTF shall be temporary, and the waste shall be controlled and contained in a manner that minimizes leachate formation and precludes infiltration of waste constituents into soils at concentrations that will violate the Basin Plan's water quality objectives for groundwaters.
5. Residual sludge, biosolids, and solid waste shall be disposed of in a manner approved by the Executive Officer and consistent with Title 27. Removal for further treatment, disposal, or reuse at disposal sites (i.e., landfills, WWTFs, composting sites, soil amendment sites) operated in accordance with valid waste discharge requirements issued by a regional water quality control board will satisfy this specification.
6. Use of biosolids as a soil amendment shall comply with valid waste discharge requirements issued by a regional water quality control board. In most cases, this will mean the General Biosolids Order (State Water Resources Control Board Water Quality Order No. 2000-10-DWQ, *General Waste Discharge Requirements for the Discharge of Biosolids to Land for Use as a Soil Amendment in Agricultural, Silvicultural, Horticultural, and Land Reclamation Activities*). For a biosolids use project to be covered by the General Biosolids Order, the Discharger must file a complete Notice of Intent and receive a Notice of Applicability for each project.
7. Use and disposal of biosolids shall comply with the self-implementing federal regulations of Title 40, Code of Federal Regulations (CFR), Part 503, which are subject to enforcement by the USEPA, not the Regional Board. If during the life of this Order, the State accepts primacy for implementation of 40 CFR 503, and then the Regional Board may also initiate enforcement where appropriate.

G. GENERAL PROVISIONS

1. Availability

A copy of this Order shall be maintained at the discharge facility and be available at all times to operating personnel.

2. Severability

Provisions of these waste discharge requirements are severable. If any provision of these requirements is found invalid, the remainder of these requirements shall not be affected.

3. Sanitary Sewer Overflows

- a. All feasible steps shall be taken to stop sanitary sewer overflows (SSOs) as soon as possible by unblocking the line, diverting the overflow to a nearby sewer line, and/or otherwise mitigating impacts of SSOs. All reasonable steps should be taken to collect spilled sewage and protect the public from contact with wastes or waste-contaminated soil.
- b. SSOs shall be reported to the Regional Water Board staff in accordance with the following:
 - i. *All SSOs reaching surface water and all SSOs in excess of 1,000 gallons* shall be reported immediately by telephone. A written description of the event shall be submitted within two weeks after the date of verbal notification.
 - ii. *All SSOs that result in a sewage spill less than 1,000 gallons* that does not reach a waterway shall be reported by telephone within 24 hours after a SSO results. A written description of the event shall be submitted with the monthly monitoring report.
 - iii. Information to be provided verbally includes:
 - a. Name and contact information of caller
 - b. Date, time and location of SSO occurrence
 - c. Estimates of spill volume, rate of flow, and spill duration
 - d. Surface water bodies impacted, if any
 - e. Cause of spill
 - f. Cleanup actions taken or repairs made
 - g. Responding agencies
 - v. Information to be provided in writing includes:
 - a. Information provided in verbal notification.
 - b. Other agencies notified by phone.
 - c. Detailed description of cleanup actions and repairs taken.
 - d. Description of actions that will be taken to minimize or prevent future spills.

4. Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the permittee to achieve compliance with this Order. Proper operation and maintenance includes adequate laboratory control and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order.

The Discharger shall comply with this Provision by submitting to the Regional Water Board within 180 days of the effective date of this Order an updated Operation and Maintenance Manual (O&M Manual) that it has developed for the facility. The Discharger shall update the O&M Manual, as necessary, to conform with changes in operation and maintenance of the WWTF. The O&M Manual shall be readily available to operating personnel on-site. The O&M Manual shall include the following:

- a. Description of the treatment plant table of organization showing the number of employees, duties and qualifications and plant attendance schedules (daily, weekends and holidays, part-time, etc.). The description should include documentation that the personnel are knowledgeable and qualified to operate the treatment facility so as to achieve the required level of treatment at all times.
- b. Detailed description of safe and effective operation and maintenance of treatment processes, process control instrumentation and equipment.
- c. Description of laboratory and quality assurance procedures, if applicable.
- d. Process and equipment inspection and maintenance schedules.
- e. Description of safeguards to assure that, should there be reduction, loss, or failure of electric power, the discharger will be able to comply with requirements of this Order.
- f. Description of preventive (fail-safe) and contingency (response and cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. These plans shall identify the possible sources (such as loading and storage areas, power outage, waste treatment unit failure, process equipment failure, tank and piping failure) of accidental discharges, untreated or partially treated waste bypass, and polluted drainage.

5. Change in Discharge

The discharger shall promptly report to the Regional Water Board any material change in the character, location, or volume of the discharge.

6. Change in Ownership

In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the discharger, the discharger shall

notify the succeeding owner or operator of the following items by letter, a copy of which shall be forwarded to the Regional Water Board:

- a. existence of this Order, and
- b. the status of the dischargers' annual fee account

7. Vested Rights

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, nor protect the discharger from liability under federal, state, or local laws, nor create a vested right for the discharger to continue the waste discharge.

8. Monitoring

The discharger shall comply with the Monitoring and Reporting Program and any modifications to these documents as specified by the Executive Officer. Such documents are attached to this Order and incorporated herein. Chemical, bacteriological, and bioassay analyses shall be conducted at a laboratory certified for such analyses by the State Department of Health Services shall conform to State Department of Health Services guidelines.

9. Signatory Requirements

- a. All ROWD applications submitted to the Regional Water Board shall be signed by a principal Executive Officer, ranking elected official, or responsible corporate officer. For purposes of this provision, a responsible corporate officer means:
 - i. A president, secretary, treasurer, or vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision making functions for the corporation; or
 - ii. the manager of one or more manufacturing, production, or operating facilities employing more than 250 persons or having gross annual sales or expenditures exceeding \$25 million (in second quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
- b. Reports required by this Order, other information requested by the Regional Water Board, and Permit applications submitted for Group II storm water discharges under 40 CFR 122.26(b)(3) may be signed by a duly authorized representative provided:
 - i. the authorization is made in writing by a person described in paragraph (a) of this provision;
 - ii. the authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or

position having overall responsibility for environmental matters for the company; and

iii. the written authorization is submitted to the Regional Water Board prior to or together with any reports, information, or applications signed by the authorized representative.

c. Any person signing a document under paragraph (a) or (b) of this provision shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

10. Inspections

The discharger shall permit authorized staff of the Regional Water Board:

- a. to enter premises in which an effluent source is located or in which any required records are kept;
- b. access to copy any records required to be kept under terms and conditions of this Order;
- c. to inspect monitoring equipment or records; and
- d. to sample any discharge.

11. Noncompliance

In the event the discharger is unable to comply with any of the conditions of this Order due to:

- a. breakdown of waste treatment equipment;
- b. accidents caused by human error or negligence; or
- c. other causes such as acts of nature;

the discharger shall notify the Executive Officer by telephone as soon as it or its agents have knowledge of the incident and confirm this notification in writing within two weeks of the telephone notification. The written notification shall include pertinent information explaining reasons for the noncompliance and shall indicate the steps taken to correct the problem and the dates thereof, and the steps being taken to prevent the problem from recurring.

12. Revision of Requirements

The Regional Water Board will review this Order periodically and may revise requirements when necessary.

13. Operator Certification

Supervisors and operators of municipal wastewater treatment plants shall possess a certificate of appropriate grade in accordance with Title 23, California Code of Regulations, Section 3680. The State Water Board may accept experience in lieu of qualification training. In lieu of a properly certified wastewater treatment plant operator, the State Water Board may approve use of a water treatment plant operator of appropriate grade certified by the State Department of Health Services where water reclamation is involved.

Although the Bohemian Grove is not classified as a municipal wastewater treatment plant, the County Use Permit UPE04-0153 requires that the collection, treatment, and disposal system be maintained and operated by a certified Grade III operator, as defined in Title 23. Consequently, this Provision is applicable to the permitted discharge. If the County use permit is amended by the County, this system could be maintained and operated by a lower grade operator, as required by the County.

Certification

I, Catherine E. Kuhlman, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, North Coast Region, on August 9, 2006.



Catherine E. Kuhlman
Executive Officer